



2026 INSC 1106

NON-REPORTABLE

**IN THE SUPREME COURT OF INDIA
CIVIL APPELLATE JURISDICTION**

SPECIAL LEAVE PETITION (CIVIL) NO. 12994 OF 2026

MEERUT DEVELOPMENT AUTHORITY

... PETITIONER

VS.

PARMESHWAR DAYAL & ANR.

... RESPONDENTS

WITH

SLP (CIVIL) NO. OF 2026 @ D.NO. 30365/2026,
SLP (CIVIL) NO. OF 2026 @ D.NO. 30167/2026,
SLP (CIVIL) NO. OF 2026 @ D.NO. 30166/2026,
SLP (CIVIL) NO. OF 2026 @ D.NO. 29777/2026,
SLP (CIVIL) NO. OF 2026 @ D.NO. 29870/2026,
SLP (CIVIL) NO. OF 2026 @ D.NO. 30188/2026,
SLP (CIVIL) NO. OF 2026 @ D.NO. 30159/2026,
SLP (CIVIL) NO. OF 2026 @ D.NO. 30366/2026,
SLP (CIVIL) NO. OF 2026 @ D.NO. 30158/2026,
SLP (CIVIL) NO. OF 2026 @ D.NO. 29869/2026,
SLP (CIVIL) NO. OF 2026 @ D.NO. 30165/2026,
SLP (CIVIL) NO. OF 2026 @ D.NO. 30777/2026,
SLP (CIVIL) NO. OF 2026 @ D.NO. 30760/2026

AND

SLP (CIVIL) NO. OF 2026 @ D.NO. 30596/2026

O R D E R

DIPANKAR DATTA, J.

Signature Not Verified
Digitally signed by
MANIK KUMAR
Date: 2026.10.09
16:29:08 IST
Reason: [?]

Delay condoned in SLP (C) Diary Nos. 30365, 30167, 30166, 29777,
29870, 30188, 30159, 30366, 30158, 29869, 30165, 30777, 30760,
30596 of 2026.

2. We have heard Mr. P. S. Patwalia, learned senior counsel for the petitioner and learned counsel appearing for the respective respondents.
3. The present batch of special leave petitions arises from proceedings for acquisition of lands dating back to 1987 under the Shatabdi Nagar Housing Scheme. The Special Land Acquisition Officer, Meerut *vide* award dated 22nd February, 1990, originally determined the compensation for the acquired lands at Rs. 20/- and Rs. 27/- per square yard. Dissatisfied with the said determination, the landowners sought references. The Presiding Officer, Land Acquisition, Rehabilitation and Resettlement Authority, Meerut¹, by its award dated 30th March, 2024, enhanced the compensation to Rs. 690/- and Rs. 720/- per square yard for the respective villages.
4. Different amounts have been determined in respect of different landowners by the Reference Court. Mr. Patwalia has placed a chart in this regard, which is taken on record and marked Appendix-I to this order.
5. The aforementioned award of the Reference Court is presently under challenge before the High Court of Judicature at Allahabad² in a batch of First Appeals under Section 54 of the Land Acquisition Act, 1894. In the interregnum, the High Court, *vide* the impugned interim orders (for instance, order dated 17th September, 2025 in First Appeal No. 717 of 2025), has stayed the implementation of the impugned award

¹ Reference Court

² High Court

provided the petitioner deposits 50% of the enhanced amount of compensation awarded by the Reference Court in cash, and furnishes security for the remaining 50%. The High Court has further permitted the claimants to receive the whole amount deposited in cash, and the balance is subject to the final decision in the pending appeals.

- 6.** Pertinently, an order dated 24th April, 2026³, passed in a similar proceeding⁴ by a coordinate Bench of this Court (of which one of us, Dipankar Datta, J. was a member) has been placed before us. In the said order, out of the enhanced amount of approximately Rs. 6 crore, Rs. 50,00,000/- (Rupees fifty lakh) only was directed to be released to the landowners, subject to certain conditions. The amount directed for release represents approximately 8.33% of the total enhanced amount.
- 7.** Since the special leave petitions arise out of appeals which are pending before the High Court, we are of the considered opinion that no useful purpose would be served in keeping the same pending. However, with a view to maintaining parity with the directions issued in the said order, these petitions stand disposed of with a direction to the petitioner to deposit the entire enhanced sum, as awarded by the Reference Court in favour of the present respondents, with the Registry of the High Court within a period of four weeks from date.
- 8.** Once such a deposit is made, the Registrar General shall set apart a sum equivalent to 8.33% of the enhanced amount of compensation

³ the said order

⁴ Special Leave Petition (Civil) No. 15370 of 2026 and connected matters

awarded to the respective respondents, and invest the balance sum in separate interest-bearing fixed deposit accounts of a nationalised bank on an auto-renewal basis and subject to further orders to be passed by the High Court in the first appeals that are pending before it.

- 9.** The set-apart sum, representing 8.33% of the enhanced compensation which has been awarded in favour of each of the respondents, shall be remitted to them in accordance with law. Release and receipt of such sum shall be without prejudice to the rights and contentions of the parties in the pending first appeals.
- 10.** It is also recorded that should the first appeals succeed, the said released sum shall be returned to the petitioner by the respective respondents.
- 11.** Before parting, we cannot turn a blind eye to the pace at which the pending first appeals are being dealt with in the High Court. As noted, the acquisition proceedings in the present case date back to the year 1987. We note with a sense of regret that, despite a specific request made in the said order to ensure hearing of the appeals on a priority basis, the High Court could not take up the same for hearing. The required alacrity, it is submitted, is missing. We are not unmindful of the heavy burden on each bench of the High Court; yet, once a request is made, it is expected of the roster bench to make a sincere endeavour to expedite its decision on the appeals. Be that as it may, we say no more in this behalf; however, we request the High Court once again to assign some priority to the first appeals preferred by the petitioner,

having regard to the fact that the Reference Court has enhanced the compensation by an unusually large margin which, on the one hand, burdens the petitioner with a huge financial liability while, on the other, leaves the respondents in a state of uncertainty as to what compensation will finally attain finality. In view thereof, it would be in the fitness of things if the High Court takes up the batch of first appeals relating to Shatabdi Nagar Housing Scheme on priority basis and decides the same as early as possible, and subject to its convenience, preferably within six months from the date of communication of this order. Ordered accordingly.

- 12.** If, for valid reasons, the High Court is unable to dispose of the appeals within six months, we grant liberty to the respondents to seek release of such further sum the High Court may deem fit and proper to grant.
- 13.** The Registry is directed to communicate a copy of this order to the Registrar General of the High Court for placing the same before the Chief Justice for information and, if required, for issuance of necessary administrative directions to ensure due compliance.
- 14.** Pending application(s), if any, shall also stand disposed of.

.....**J.**
DIPANKAR DATTA

.....**J.**
SHEEL NAGU

NEW DELHI;
OCTOBER 08, 2026.

APPENDIX-I

DATA FURNISHED BY MEERUT DEVELOPMENT AUTHORITY IN RESPECT OF DIFFERENT SPECIAL LEAVE PETITION PENDING FOR THE CONSIDERATION OF THIS HON'BLE COURT

SATABDI NAGAR YOJANA

SL. NO.	SLP NO. (DIARY)	CAUSE TITLE ALONGWITH THE APPEAL NO.	COMPENSATION AMOUNT PREVIOUSLY PAID BY ADM (LAO)	PAYMENT AMOUNT AT THE RATE OF ₹165 / 690 PER SQ. GAJ UNDER SETTLEMENT	ASSESSED DECRETAL AMOUNT PAYABLE AS PER LARA COURT, MEERUT JUDGMENT DATED _____	PAYMENT MADE BY LARA COURT, MEERUT / DEVELOPMENT AUTHORITY	BALANCE AMOUNT TO BE PAID	REFERENCE NO. / ENQUIRY NO. / APPEAL NO.
1.	D No. (sic, SLP (C) No.) 12994 of 2026	FA No. 718 (sic, 717) of 2025 MDA Vs. PARMESHWAR DAYAL	53,343.95	-	29,85,161.85	14,92,580.00	14,92,580.00	406 / 92, Ex-405 / 25
2.	D No. 30365 of 2026	FA No. 732 of 2025 RAMA CO-OPERATIVE HOUSING SOCIETY LTD.	35,69,193.70	-	19,97,34,446.06	-	19,97,34,446.06	652 / 97, Ex-406 / 25
3.	D. No. 30167 of 2026	FA No. 714 of 2025 ASHISH KUMAR	19,640.00	-	7,93,745.18	-	7,93,745.18	62 / 97, Ex-408 / 25
4.	D No. 30166/2026	FA No. 716 of 2025 MDA Vs. AJAY KUMAR	61,345.00	-	34,32,949.24	-	34,32,949.24	411 / 92, Ex-403 / 25
5.	D No. 29777/2026	FA No. 728 of 2025 MDA Vs. MANISH GUPTA	5,69,567.64	-	3,18,73,379.60	-	3,18,73,379.60	405 / 92, Ex-411 / 25

6.	D No. 29870 / 2026	FA No. 720 of 2025 MDA Vs. MANISH KUMAR	2,79,271.32	-	1,62,82,699.00	-	1,62,82,699.00	404 / 92, Ex-409 / 25
7.	D No. 30188 / 2026	FA No. 734 of 2025 MDA Vs. AKHIL KUMAR	24,247.00	-	13,56,891.61	-	13,56,891.61	412 / 92, Ex-407 / 25
8.	D No. 30159 / 2026	FA No. 724 of 2025 MDA Vs. MEENAKSHI	19,640.00	-	7,93,745.18	-	7,93,745.18	65 / 97, Ex-415 / 25
9.	D No. 30366 / 2026	FA No. 728 of 2025 MDA Vs. PARTAPUR CO-OPERATIVE INDUSTRIAL STATE LTD	7,37,116.00	-	17,72,10,045.00	-	17,72,10,045.00	648 / 97, Ex-412 / 25
10.	D No. 30158 / 2026	FA No. 718 of 2025 MDA Vs. PARMESHWAR DAYAL	9,31,044.00	-	6,94,72,850.80	-	6,94,72,850.80	400 / 92, Ex-413 / 25
11.	D No. 29869 / 2026	FA No. 729 of 2025 MDA Vs. MANISH GUPTA	5,43,138.15	-	3,03,94,372.00	-	3,03,94,372.00	402 / 92, Ex-404 / 25
12.	D No. 30165 / 2026	FA No. 723 of 2025 MDA Vs. TARUN GUPTA	1,24,060.00	-	51,13,828.13	-	51,13,828.13	603 / 97, Ex-414 / 25
13.	D No. 30777 / 2026	FA No. 731 of 2025 MDA Vs. PARMANAND	23,277.00	-	13,02,615.00	-	13,02,615.00	407 / 92, Ex-
14.	D No. 30760 / 2026	FA No. 719 of 2025 MDA Vs. MDA Vs. MANISH GUPTA	6,48,204.54	-	466,77,071.63	-	4,66,77,071.63	651 / 97, Ex-
15.	D No. 30596 / 2026	FA No. 715 of 2025 MDA Vs. ASHISH KUMAR	1,50,575.35	-	60,85,379.75	-	60,85,379.75	67 / 97, Ex-
TOTAL			Rs.77,53,663.65		₹59,35,09,179.73	14,92,580.00	₹59,20,16,598.18	